

25STCV25576 25STCV25576

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Case Number: 25STCV25576 Hearing Date: August 11, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

NICHOLAS RAY SCHULTZ,

Plaintiff,

vs.

BRAVO HIGHLINE, LLC, et al.,

Defendants.

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CASE NO.: 25STCV25576

[TENTATIVE] ORDER DENYING MOTION FOR PROTECTIVE
ORDER

Dept. 506

8:30 a.m.

August 11, 2026

On

April 8, 2026, Plaintiff Nicholas Ray Schultz filed a first amended complaint against
Defendants Bravo Highline, LLC and AB Lending SPV I LLC ("ABL").

On

May 12, 2026, ABL filed a demurrer.

On

July 16, 2026, ABL filed a motion for a protective order temporarily precluding
ABL from responding to discovery requests propounded by Plaintiff.

DISCUSSION

Upon

a showing of good cause, the Court may issue a protective order to protect a party
or deponent from unwarranted annoyance, embarrassment, oppression, or undue burden
and expense. (Code Civ. Proc., § 2025.420
[depositions], 2030.090 [interrogatories], 2031.060 [documents and inspections],
2033.080 [admissions].) The protective order

may include directions that the discovery not be taken, be taken at a different time or place, be taken on certain specified terms and conditions, be taken by written instead of oral examination, or that the scope be limited to certain matters. “[T]he burden is on the party seeking the protective order to show good cause for whatever order is sought.” (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.)

ABL

“seeks a protective order prohibiting Plaintiff from conducting any discovery in this matter and relieving ABL of its obligation to respond to Plaintiff’s pending discovery requests—namely, Plaintiff’s Requests for Admission (Set One), Requests for Production (Set One), and Special Interrogatories (Set One) (collectively, the ‘Discovery Requests’)—until the hearing on ABL’s pending Demurrer, currently set for November 5, 2026.” (Motion at p. 2.)

According

to ABL, “California courts have found that a protective order staying discovery until after a demurrer is decided is appropriate where the demurrer presents a case-dispositive issue and the discovery sought would not aid the plaintiff in correcting the pleading deficiency identified in the demurrer.” (Motion at p. 3.) ABL’s cited authority is not so definitive. (See *id.* at pp. 6-7.)

The

Court of Appeal did state, “Issuance of a protective order is proper where the complaint fails to state a cause of action.” (Pacific Architects Collaborative v. State of California (1979) 100 Cal.App.3d 110, 127 (Pacific Architects).) But this was in the context of a protective order postponing depositions before a motion for summary judgment when the information sought was immaterial and irrelevant, and it “would neither be helpful for preparation for trial nor lead to evidence admissible at trial.” (*Ibid.*) Pacific Architects (And ABL) cited *Silver v. City of Los Angeles* (1966) 245 Cal.App.2d 673 (*Silver*) as support. In *Silver*, the court took the defendants’ motion for protective order (under former Code of Civil Procedure section 2019) off calendar pending a special hearing on the underlying legal issue of whether the complaint stated a claim. (*Id.* at p. 674.)

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v. Lightbourne (2013) 221 Cal.App.4th 480, 487, the court granted in part a motion for protective order after sustaining a demurrer with leave to amend. The court also directed the parties to agree to a discovery schedule. (Ibid.) But on appeal, the issue was the court eventually sustaining a demurrer without leave to amend and dismissing the action. Dicta about the procedural history does not require this Court to grant a blanket protective order before any determination on the demurrer. (See B.B. v. County of Los Angeles (2020) 10 Cal.5th 1, 11 ["cases are not authority for propositions not considered," quotation marks omitted].)

Similarly, the court in *Terminals Equipment Co. v. City and County of San Francisco* (1990) 221 Cal.App.3d 234, 246-247 stayed discovery until the plaintiffs filed an amended complaint that could withstand demurrer. The Court of Appeal affirmed the trial court's dismissal of the action and its issuance of the discovery stay because "if [the plaintiffs] were unable to state a viable cause of action on the basis of the facts already available to them, nothing in these disputed documents could do anything to change that." (Id. at p. 247.)

None of ABL's cited authority supports their request for a full stay of discovery before any determination of the validity of Plaintiff's claims. Plaintiff's requested discovery is standard written discovery: Requests for Admission, Requests for Production, and Special Interrogatories. ABL has not shown that these requests are indeed overly burdensome or overbroad. Despite asserting that "this discovery is overbroad and has no connection whatsoever to determining whether ABL intended to interfere with Plaintiff's severance agreement" (Motion at p. 9), ABL has not brought a narrowly tailored request for a protective order on these grounds. Instead, ABL seeks to prohibit all discovery, not just overbroad discovery.

ABL's responses to discovery further demonstrate that the requested protective order is unnecessary at this time: "That ABL served objection-only responses preserving its objections while moving to be excused from responding only underscores that the motion was unnecessary and duplicative of the remedy the Discovery Act already afforded it." (Opposition at p. 7.)

The Legislature has determined that there are certain circumstances when a full discovery

stay is warranted, such as when there is a pending anti-SLAPP motion or a motion to compel arbitration. (See Code Civ. Proc., §§ 425.16, subd. (g), 1281.4.) But a pending demurrer is not one of those. ABL's request for a full prohibition on discovery—without demonstrating good cause—runs afoul of Plaintiff's statutory right to begin discovery within ten days of service of process on ABL. (See Code Civ. Proc., §§ 2030.020 [interrogatories], 2031.020 [documents and inspections], 2033.020 [admissions].)

In sum, ABL has not met its burden of showing good cause for a protective order precluding all discovery.

The motion is denied.

CONCLUSION

The motion for protective order is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 11th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court